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HAITI

Human Rights Developments

Mounting political violence in the context of anticipated elections and a notable increase in killings by police marked a year that began with President René Préval's abrupt dismissal of parliament and unilateral naming of a new prime minister and cabinet. Increasing political intolerance was apparent in several violent protests by supporters of former President Jean Bertrand Aristide, as well as armed attacks on political figures and a leading human rights activist. Meanwhile, a U.S. cut in special funding forced the six-year-old United Nations (U.N.)/OAS International Civilian Mission (MICIVIH) to close five offices and dismiss half its monitors, and the Clinton Administration announced the impending withdrawal of the 450-person U.S. Military Support Group in Haiti.

Killings attributed to the Haitian National Police (HNP), after dropping for two years (with fifty-nine reported in 1996, fifty-three in 1997, thirty-one in 1998, and just three from January to March 1999), jumped in the second quarter of the year, with fifty killings reported, according to the U.N./OAS mission, including the first cases of disappearances followed by execution since the end of military rule. However, in the following three months, just four cases were reported.

On May 11, a police operation in the Carrefour-Feuilles section of Port-au-Prince left eleven men dead, most of them shot in the head while in police custody. The first three victims were said to be suspected criminals handed over to police by citizens' groups; a justice of the peace called in to certify those deaths witnessed police shoot eight others, unarmed neighborhood residents. Port-au-Prince police commissioner Jean Coles Rameau, a former military officer implicated in earlier abuses who commanded the operation and may have joined the shooting, fled the country, but was arrested in the Dominican Republic and swiftly returned to Haiti. The government created a special commission of three judges to investigate the killings.

Police were also responsible for a pattern of apparent summary executions of presumed gang members involved in killings of police officers. The remains of fourteen bodies were found in Titanyan, an area north of Port-au-Prince that was an infamous body-dumping ground under military rule, and investigations indicated that many of the dead were probably gang members from the Fontamara neighborhood arrested and disappeared in Croix des Missions after the killing of an agent with the HNP's Company for Intervention and Maintaining Order (Compagnie d'Intervention et de Maintien de l'Ordre). HNP searching the area had shot and killed two young people and then arrested eight others who were never seen again. A so-called vigilance brigade made up of police and armed civilians killed a number of suspected thieves from Cité Soleil in May and June, with four mutilated bodies found in Titanyan, and two blindfolded ones near the Batimat building on the edge of Port-au-Prince, another site used during the military government.

Police beatings of suspects in custody increased, according to the U.N./OAS Mission, from 284 reports in 1997 to 432 in 1998, and 103 in the first three months of 1999. In most cases, authorities failed to sanction the officers involved or take effective action to prevent further abuses. The HNP Inspector General's Office, whose mandate covered investigations of human rights abuse, was increasingly occupied with combating drug trafficking and other criminal activities by police, but launched investigations into the most serious abuses and continued earlier investigations. The courts

continued to lag behind the police in investigating and prosecuting police officers remanded to them, but a few cases moved forward in the provinces.

With the appointment in March of a new justice minister, human rights lawyer Camille Leblanc, there were signs that long-stalled justice reform was beginning to stir. The School for Judges (Ecole de la Magistrature), which graduated a first class in 1998, but then failed to follow up the next year, held competitive exams to recruit a new class that was set to start in November 1999. The long awaited court for minors was inaugurated on May 21, although it shut down in July and had not reopened by late October.

The largely dysfunctional justice system produced a prison population where 81 percent of approximately 2,700 detainees were awaiting trial. In mid-1999 at the National Penitentiary, the U.N./OAS Mission found 173 detainees held in pretrial detention since 1995 and 1996, some lacking dossiers. Judicial proceedings at all levels continued to be problematic, with vague and incomplete dossiers sent to examining magistrates, empty or missing police reports and significant irregularities during criminal court sessions.

Especially alarming was a refusal to carry out judicial release orders for certain long-term pretrial detainees, mainly former members of the Armed Forces of Haiti (Forces Armées d'Haïti, FAd'H) or associated civilians accused of plotting against state security or related charges. These include Evans François, the brother of coup d'état leader Michel François, ordered released in May 1997, and former Gen. Claude Raymond, jailed since July 1996, released in November 1998 but immediately rearrested on new charges. Prominent right-wing attorney Osner Fevry, detained in March 1997 for assault and ordered released the same month, was imprisoned until December 1998. Others with pending release orders as of mid-August were individuals accused in the 1987 Gonaïves toxic waste dumping and the 1987 Jean Rabel massacre, and a former judge detained without charge or trial since October 1998. The Port-au-Prince state prosecutor of several years, Jean-Auguste Brutus, was directly responsible for most of these cases, but his stance, the U.N./OAS mission wrote in its Human Rights Review for April-June 1999, "increasingly appears to benefit from the support, tacit or otherwise, of his supervising authorities." Justice Minister Leblanc replaced Brutus in October.

After a two-year delay, the government in June 1999 approved regulations spelling out acceptable prison conditions and disciplinary guidelines for dealing with inmates. Under the renamed Penitentiary Administration Management (Direction de l'Administration Pénitentiaire, DAP), conditions improved generally, but mismanagement and suspected corruption still led to food shortages, malnutrition, and poor medical care at some facilities. The National Penitentiary opened a new three-story dormitory building in March, enabling the separation of men facing minor charges from those accused of more serious crimes. The penitentiary director and seventeen guards were dismissed in December 1998 for alleged involvement in prisoner beatings, but there were few such allegations in 1999. The DAP appointed the first inspector generals for the prison system in March 1999.

Justice Minister Leblanc made a priority of moving forward the long-delayed judicial proceedings in the 1994 Raboteau massacre, where Haitian military and civilians, many of them in custody, allegedly killed some fifteen people. In October, the investigating judge issued indictments charging Gen. Raoul Cedras and other high-ranking officers, all or most of whom were living outside Haiti, with intellectual authorship of the killings. The trial was being portrayed as the centerpiece of the battle against impunity. In the South Department, a few such cases moved forward, with a former FAd'H member sentenced to five years of imprisonment and a fine for a January 1993 incident of illegal arrest and torture.

With support from the recently created Committee to Bring Duvalier to Justice, four Haitians who had been imprisoned and tortured in the 1970s filed complaints in a Paris court on September 10, 1999, against former Haitian dictator Jean-Claude Duvalier for "crimes against humanity."

The Office of Prosecution and Follow-up (Bureau de Poursuite et Suivi) created by the Justice Ministry in 1998 to distribute reparations to groups that suffered violence or property damage under the military cited housing, schools, and legal and economic assistance to victims as the priority targets for its U.S. \$3.75 million 1998 budget. In July 1999, the Ministry began disbursing funds to 914 victims of the 1993 fire in Cité Soleil, believed set by the paramilitary Front for the Advancement and

Progress of Haiti (Front pour l'Avancement et Progrès d'Haïti, FRAPH), with each receiving 27,000 gourdes (\$1,687) to rebuild.

On January 11, 1999, President René Préval dismissed the entire Chamber of Deputies and all but nine Senate members, asserting that their terms had constitutionally expired, even though elections for their replacements, scheduled for December 1999, had not been held. Haiti had been without a fully functioning government since the June 1997 resignation of Prime Minister Rosny Smarth and the search for a successor had dragged on, with continuing disputes over the April 1997 elections. Opposition leaders called Préval's January 11 move, which also ended the terms of local elected officials, a "coup d'état against parliament" and filed suit with the Court of Cassation, but the court decided it lacked jurisdiction. At this writing, no new parliament was expected to be seated until the legislative elections.

Several violent incidents followed the dismissal of parliament. On January 12, gunmen shot and wounded the president's sister and killed her driver. On March 1, Senator Jean-Yvon Toussaint, one of the nine remaining senators and a member of the opposition Organization of People in Struggle (Organisation du Peuple en Lutte, OPL), was assassinated in an ambush. Three former OPL deputies sought refuge in the residence of the Chilean ambassador and then left the country in April following threats and attacks on one of their homes.

In March, Préval appointed a new government headed by former Education Minister Jacques Edouard Alexis, and announced agreement on a new Provisional Electoral Council (Conseil Electorale Provisoire, CEP). The CEP scheduled elections for December, but then delayed them until March 2000. Political parties expressed fears for election security after the resignation in October 1999 of Secretary of State for Public Security Bob Manuel and the assassination of former Col. Jean Lamy, an Aristide associate rumored to be likely to succeed him. In separate incidents, two CEP members and two leading OPL figures sustained armed attacks in 1999.

Popular organizations linked to the Fanmi Lavalas party of former President Jean Bertrand Aristide were implicated in some violent protests. At a May 28 rally against violence called by the Chamber of Commerce with the support of many other private sector and popular organizations, protesters associated with the party threw urine-filled plastic bottles and chairs. Police failed to intervene to stop the violence but cancelled the rally shortly after it began and dispersed the crowd, mistreating four journalists in the process. Rumors that police were responsible for the April 20 killing of a Fanmi Lavalas activist sparked several days of violent protests calling for the resignation of the police chief and secretary of state for public security. The U.S. International Republican Institute (IRI), whose programs had encouraged political parties not associated with Fanmi Lavalas to unite, closed its Haiti office in June following threats and intimidation of its staff by gunmen who claimed to be supporters of the former president.

For 1998, the U.N./OAS Mission reported ninety people killed in sixty-one lynching incidents, a drop from 1997's 152 victims of eighty-eight incidents. Most victims were suspected criminals or accused of sorcery. Twenty-four incidents with thirty-two victims were reported from January to June 1999, and police efforts prevented others.

In August 1999, Haiti submitted its first report in nine years to the U.N. Committee on the Elimination of Racial Discrimination. It had yet to make a report to the Committee on the Elimination of Discrimination against Women; its first was due in 1982. Campaigns by women's groups in the last few years helped increase awareness about violence against women, but there were no institutional mechanisms to assist victims or prevent violence. Kay Fanm (Women's House), which ran the only women's shelter in the country, received an average of twenty women per month. Children's rights advocates prepared a draft Code of the Child, aimed at increasing legal protection of children and bringing national law into harmony with the Convention on the Rights of the Child, but without a parliament this and many other bills could not be introduced.

Defending Human Rights

Gunmen driving a car opened fire on March 8 on well-known human rights activist Pierre Espérance of the National Coalition for Haitian Rights (NCHR), also treasurer of the Platform of Haitian Human

Rights Organizations. Espérance was hit in the knee and the shoulder. In February and June, human rights groups found anonymous leaflets on their premises threatening them and their staff by name.

The Role of the International Community

United Nations

The U.N. police training and monitoring mission known as MIPONUH (with 279 officers from ten countries) was unlikely to be renewed at the November 1999 expiration of its mandate, due to opposition within the Security Council, chiefly from China and Russia. The so-called Friends of Haiti (the United States, Canada, France, Argentina, Venezuela, and Chile) sought U.N. support for a new mission, perhaps under General Assembly authority, focused on police and justice reform. The Secretary General's independent expert on Haiti, Adama Dieng, visited the country twice and submitted a thorough report to the U.N. Commission on Human Rights. The special rapporteur on violence against women made her first official visit in June, and was expected to issue a report.

United States

The United States criticized Préval's shut-down of parliament and used promised funding for the holding of new elections to press for resolution of the contested 1997 vote. Washington continued to hold 160,000 documents seized from the Haitian military and the paramilitary group FRAPH during its 1994 intervention, maintaining that it wanted to hand them over to the Haitian government but only after blacking out the names of U.S. citizens, a condition the Préval government rejected. FRAPH leader Emmanuel "Toto" Constant, who claimed to be a paid CIA informant under military governments, continued to live and work in Queens, New York, after being given refuge from deportation or extradition, apparently on condition that he not speak about his U.S. connections. Former Haitian army colonel Carl Dorelien, who was living in Florida and who attracted attention after he won a Florida lottery jackpot, revealed to the Boston Globe in May 1999 that fifteen high-ranking Haitian officers, including most of the high command, were allowed to emigrate to the U.S. after Aristide's return. Congressional Republicans withheld \$1.6 million dollars in U.S. funding to the OAS for the U.N./OAS human rights mission, causing major cutbacks. Under pressure from Republicans and the Pentagon, which argued that security risks to the troops had increased, the Clinton Administration announced the planned withdrawal of permanent U.S. military forces from Haiti some time in 2000. The troops kept a low profile recently, engaging in engineering projects and medical care, but their purpose was understood as deterring potential violence. The Haitian parliament in 1998 passed a law barring foreign troops on Haitian soil, and the response to the U.S. announcement was muted.

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